

1 CODE 3370

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6 IN THE FAMILY DIVISION
7 OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
8 IN AND FOR THE COUNTY OF WASHOE

9 IN THE MATTER OF:

10 EVAKAY BALDES, AND
11 ALEXIS CLARK,

12 MINOR CHILDREN.

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)
) Case No. JV24-00104
) JV24-00105

) Dept. No. 11
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14 **WARRANT AUTHORIZING EMERGENCY PLACEMENT OF CHILD**
15 **INTO PROTECTIVE CUSTODY**

16 This matter came before the Honorable Paige A. Dollinger on January 23, 2024, at 2:32
17 p.m. Natasha Mieras ("Ms. Mieras"), of Washoe County Human Services Agency ("WCHSA"),
18 appeared telephonically and presented the following oral testimony:

19 The children at issue are Evakay Baldes ("Evakay"), whose date of birth is October 19,
20 2009, and Alexis Clark ("Alexis"), whose date of birth is February 24, 2014. The mother of the
21 children is Megan McCafferty ("Ms. McCafferty"), whose date of birth is August 25, 1991. The
22 father of Alexis Clark is Donovan Clark ("Mr. Clark"), whose date of birth is March 20, 1985.
23 The father of Evakay Baldes is Justin Baldes ("Mr. Baldes"), whose date of birth is believed to
24 be October 3, 1990. There is no indication that ICWA applies. Mr. Baldes's whereabouts are
25 unknown. He has not had any contact with Evakay since she was a baby. He does, however, pay
26 child support, which is garnished from his wages. His last known address is in Wyoming and a

1 diligent search produced no possible phone numbers. WCHSA will continue to make efforts to
2 locate him. WCHSA will make efforts to gather the child support order, as well as a possible
3 protection order that Ms. McCafferty has indicated is in place in the state of Wyoming, or in
4 their absence, WCHSA will continue to search for those documents.

5 On November 2, 2023, WCHSA received a report alleging domestic violence between
6 Ms. McCafferty and Mr. Clark, as well as alleging that Mr. Clark was actively using
7 methamphetamines, and that Alexis had found a small baggie containing methamphetamines.
8 WCHSA made contact with the family at that time. Alexis reported she had found meth once, in
9 a pouch that belonged to her dad, a few weeks prior. She did not want to discuss drug use any
10 further. Both children reported ongoing yelling and verbal fighting between their parents, mostly
11 about not cleaning and Mr. Clark's drug use. Ms. McCafferty denied any domestic violence
12 between her and Mr. Clark and stated that they were trying to separate. She reported that Alexis
13 found meth in the home maybe six or seven months prior, and that she had found it herself about
14 three months prior. She said she had confronted Mr. Clark and he flushed it down the toilet both
15 times. She indicated that she believed he was using, but could not prove it, as he had been
16 behaving erratically.

17 Mr. Clark declined to drug test for WCHSA at that time. WCHSA offered to transport
18 Ms. McCafferty and the children to a motel, which she declined. She initially accepted domestic
19 violence advocate services, but declined a couple days later, when they contacted her. Mr. Clark
20 denied any physical violence in the home, stating that Ms. McCafferty would lie about violence
21 to get him in trouble. He denied using any drugs, reported his last relapse was six months prior,
22 but that it was brief. He was heavily fixated on prior WCHSA involvement and that Ms.
23 McCafferty must have been the reporting party for this report. He just admitted their relationship
24 is toxic and they fight a lot.

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1 The home itself, at that time, was extremely messy. Piles of clothes throughout, small
2 debris on the floor, toys, crumbs, food items, trash, dirty dishes, throughout the living room and
3 the kitchen. There were several pans stacked up with old food crusted on them, as well as a
4 strong stale marijuana smell. WCHSA returned to the home the following day, and this had been
5 remedied.

6 Ms. Mieras was assigned the following business day, and scheduled a home visit with
7 Ms. McCafferty for that week. When she arrived, Ms. McCafferty informed her that Mr. Clark
8 had admitted to her he had been using meth, and so, he moved out because he needed to go to
9 rehab. They were both scared of having the children removed and of CPS involvement, so they
10 decided that he would leave the home to avoid any legal removal of the children.

11 Over the course of the investigation, each time Ms. Mieras checked in with Ms.
12 McCafferty, she maintained that Mr. Clark was out of the home. Ms. Mieras was not able to
13 reach Mr. Clark during this time, despite several attempts. She submitted a referral for
14 counseling for Evakay, which Ms. McCafferty did not utilize. She's had the information since
15 December 1, 2023. On January 16, 2024, WCHSA received a new report that Mr. Clark was in
16 the home, that he had never left, and that the parents had lied to WCHSA so their case would
17 close, however, it was still open to Ms. Mieras.

18 Ms. Mieras interviewed Alexis at school, and she corroborated this. She was so scared to
19 speak with Ms. Mieras, and she was crying. She had been told by her parents that if she spoke,
20 she'd be taken away. She said her dad, Mr. Clark, specifically told her not to talk about him. She
21 expressed that he never moved out, and that the fighting between her parents is really bad, that
22 they fight about everything. She initially said she didn't want to talk about drugs, so Ms. Mieras
23 had to circle back to it later, and when she was asked, she said she knows what drugs are because
24 her mom told her about them, and she's found them in the home. She described meth very
25 accurately as being a white crystal powder, in a tiny clear baggy. She said that she has found
26 meth three times, with the most recent being a couple of days ago, in Mr. Clark's bedroom on his

1 dresser. She said the first two times she told her mom, gave it to her mom, and her mom flushed
2 it down the toilet. She also said that during Christmas break, school break, her mom found a
3 “pipe thing for meth” and confronted her dad about it.

4 Ms. Mieras reported that she saw Evakay, the 14-year-old, at school the same day. She
5 was visibly nervous, she was fidgeting in her chair, she was only answering my questions with
6 really minimal information. Evakay said that her dad has been at the house, but is not living
7 there. She said her parents have continued to fight verbally, that her dad is using drugs, but it's
8 “not serious”, and that her mom has found stuff that proves he's using drugs, but she doesn't
9 know what exactly. She denied that she has ever found drugs.

10 Ms. Mieras then responded to the family's home and made contact with Ms. McCafferty.
11 The home was again in disarray, with piles of laundry in the living room, dirty dishes in and
12 around the sink, significant debris throughout the floor, garbage, food, cigarette butts, and odor
13 of cigarette smoke in the home. Ms. McCafferty maintained that Mr. Clark was not living there
14 and could not recall the last time she had contact with him, estimating sometime in November,
15 before Thanksgiving.

16 She claimed that Evakay just told her that he has been stopping by the home, so she
17 bought cameras to see if he comes over. Ms. Mieras asked her to pull those cameras up so that
18 she could view them. It took her several minutes on her phone and when she showed them to Ms.
19 Mieras, she had deleted the device from the app, so it showed no motions. When Ms. Mieras
20 asked her about that, she said she didn't know how that had happened. She denied that Alexis has
21 found any more meth recently.

22 While Ms. Mieras was speaking to her, her phone was on the couch, in front of her, face
23 up, and it rang. She tried to pick it up quickly, but Ms. Mieras saw that it was Mr. Clark calling.
24 She tried to pretend that she was shocked he was calling, and answered the phone saying, where
25 have you been. Ms. Mieras stated that she could hear Mr. Clark yelling back at her, saying,
26 “what do you mean where have I been, I'm at work.” She started yelling at him that CPS was

1 there and saying, "I've been trying to reach you, I want to know where you're at, what you're
2 doing."

3 So, Ms. Mieras got on the phone with Mr. Clark. He said that he was trying to get into a
4 rehab program at the VA, but he has to sort it out with his job. He reported he was living with a
5 friend, Brian. He provided an address that does not appear to exist. He refused to drug test for
6 WCHSA and was behaving extremely erratically on the phone, yelling at me, struggling to form
7 sentences, speaking very rapidly. He later was present at the residence, and he has pick marks on
8 his face. He's unable to stand still, or to track a conversation.

9 Ms. Mieras reported that on January 16, she spoke with the paternal grandmother, Della
10 Baker, who corroborated that Mr. Clark had been living in the home for the entirety of this
11 investigation. She did not know that WCHSA believed him to be moved out. She stated that it's
12 not a safe living environment. Mr. Clark has abused drugs his entire life. Ms. McCafferty
13 continues to enable his behavior, cannot protect her children from him, that the two of them
14 constantly fight and that Ms. McCafferty has told Evakay, specifically, the 14-year-old, to lie for
15 her, so that Ms. McCafferty doesn't get into trouble. At this point, WCHSA implemented a
16 present danger plan with Ms. Baker, who indicated that she would seek guardianship.

17 Ms. Mieras met up with Mr. Clark a few days later. He said he wanted to be honest
18 because he felt like they got off on the wrong foot when the present danger plan was
19 implemented. He admitted that he has been actively using methamphetamines, that he uses every
20 few days, when he is so exhausted, he can hardly function. He also admitted he self-medicates
21 for his own untreated mental health, which he described as diagnosis of bipolar and depression.
22 He admitted that Alexis has found meth in the home at least one time. He described his
23 relationship with Ms. McCafferty as being unhealthy. They argue all the time. She uses the
24 children as pawns against him, constantly threatening to take them. He told Ms. Mieras that he
25 had an appointment at the VA on Monday, which was yesterday, and would call her after. He
26 refused to drug test for WCHSA until after that appointment.

1 Today, Ms. Mieras reported that she received a call from Ms. Baker, the paternal
2 grandmother, who indicated that she is no longer willing to be a PDP provider. She will not file
3 for guardianship. The parents are harassing her, telling her that this is all her fault, and that they
4 are being lied to. The girls are not behaving. She is transporting them from South Reno to
5 Spanish Springs for school, which is taking a toll on her, and they are infested with lice. Alexis's
6 case is so bad that she has open sores on her head.

7 Ms. Mieras called the parents to touch base with them, and Mr. Clark reports that he
8 moved his appointment at the VA to tomorrow, so he could meet with an attorney today. He's
9 continuing to decline to drug test, and continues to reside in the home with Ms. McCafferty, who
10 is unwilling to have any meaningful conversation around how she keeps her children safe. At this
11 time, WCHSA is still seeking a placement for them, but does not have any other local relatives
12 or fictive kin to consider.

13 With the above information in mind, WCHSA is consequently requesting a court finding
14 that it is contrary to the child's welfare to remain in the home, and that it is in the best interests of
15 the children to be placed outside of their home at this time.

16 Based on the sworn testimony the Court finds there is reasonable cause to believe the
17 continuation in the home is contrary to the welfare of the children and that it is in the children's
18 best interest to be placed outside the home. The Indian Child Welfare Act does not apply at this
19 time.

20 Accordingly, the Court hereby orders as follows:

21 1. The Court hereby authorizes Washoe County Human Services Agency
22 ("WCHSA") to immediately take the children into protective custody.

23 2. Pursuant to NRS 432B.390(4), WCHSA shall request the assistance of law
24 enforcement in removing Evakay Baldes and Alexis Clark, if it has reasonable cause to believe
25 that the children or the person placing the children into protective custody may be threatened with
26 harm.

3. WCHSA may consent to any and all necessary and/or emergency medical treatment for the children while they remain in its custody.

4. Upon placement of the children into protective custody, WCHSA shall bring this matter before this Court for a protective custody hearing pursuant to NRS 432B.470.

5. This warrant shall be limited in its activity for 72 hours from January 23, 2024, 2:44 p.m.

6. This order is entered *nunc pro tunc* to January 23, 2024.

NRS 125C.0045(6) regarding abduction, concealment, or detention of a child:

PENALTY FOR VIOLATION OF ORDER: THE ABDUCTION, CONCEALMENT, OR DETENTION OF A CHILD IN VIOLATION OF THIS ORDER IS PUNISHABLE AS A CATEGORY D FELONY AS PROVIDED IN NRS 193.130. NRS 200.359 provides that every person having a limited right of custody to a child or any parent having no right of custody to the child who willfully detains, conceals or removes the child from a parent, guardian or other person having lawful custody or a right of visitation of the child in violation of an order of this court, or removes the child from the jurisdiction of the court without the consent of either the court or all persons who have the right to custody or visitation is subject to being punished for a category D felony as provided in NRS 193.130.

Pursuant to NRS 125C.0045(7), the parties are hereby put on notice that the terms of the Hague Convention of October 25, 1980, adopted by the 14th Session of the Hague Conference on Private International Law, apply if a parent abducts or wrongfully detains a child in a foreign country.

IT IS SO ORDERED.

Dated: January 25, 2024

Paige A. Dollinger
DISTRICT JUDGE